

October Term 1871

19th cause coming on for final hearing. Therefore it is considered by the Court that the judgment by default heretofore rendered in this cause be and the same is now here made final and because the demands of the plaintiff is ascertained by the statement filed on the Court finds that the plaintiff has sustained damages and assessed the same at the sum of One Hundred and Sixty Six Dollars and Forty Two Dollars cents. Therefore it is considered by the Court that the plaintiff recover of the defendant the paid sum of One Hundred and Sixty Six Dollars and Forty Two cents for his damages as well as his costs and charges in this behalf expended and that execution issue therefor. Hence this judgment bears 6 of

On motion of John Caspore, L. L. Bridges Esq of Sedalia McGowan Amended as an Atty at this bar

Thomas Tucker

Against
Pacific Rail Road

The defendant by attorney file herein his motion for a new trial

L. H. Allison assignee of H. Chidson

Against
L. H. & L. Allison

Pending the motion to quash, by order of the plaintiff the execution is returned not satisfied. It is therefore considered by the Court that the motion to quash be and the same is now here dismissed at the cost of the plaintiff in execution. Therefore it is considered by the Court that L. H. Allison recover of L. H. Allison his cost in this behalf expended and that execution issue therefor.

The State of McGowan on the relation of the Central National Bank of Boonville McGowan Relator
Against

Christian Reill as Treasurer of Cooper County Respondent

And now at this day comes the said relator and presented its petition for mandamus against the said respondent and the Court being fully advised in the premises it is ordered that an alternative writ of mandamus issue to the said Christian Reill as Treasurer of Cooper County returnable to this Court on

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19th the 14th day of this term being the 28th day of October 1871 at the hour of 10 o'clock A. M. commanding the said respondent as Treasurer as aforesaid to pay over to relator the amount of warrant No 830 for Nine Hundred and Six Dollars of date February 6th 1871 drawn on said respondent as such Treasurer by order of the County Court of Cooper County in favor of W. C. Baird and by him endorsed and assigned to relator and which was presented to said respondent as such Treasurer for payment and by him endorsed. Presented not paid for want of funds Feb 6th 71 and for which the payment of which afterwards and but the 12th of May 1871 funds applicable to its payment were received and by said respondent set aside for said warrant and are on ought to be yet in respondent's hands but the payment of which warrant although demanded has been by said respondent refused and is yet refused on the said respondent show cause to this Court why he has not paid the same

Nancy J. Nelson

Curran Nelson

Now at this day the above entitled cause coming on to be heard at the said defendant having made default and it appearing to the Court that on the 12th day of October 1869 in the County of Cooper and State of Missouri the plaintiff was lawfully married to the defendant that she continued to live with him as his wife from and after the day and year aforesaid until the 5th day of April 1870; that during all that time plaintiff faithfully discharged herself of the charges of all her duties as the wife of defendant and at all time treated him with kindness and affection; but said defendant wholly disregarding his duties as the husband of plaintiff did on the 5th day of April 1870 absent himself from plaintiff without any reasonable cause and has remained absent from her ever since so that for the space of one year that plaintiff has resided within this State one whole year except he give the filing of the petition in this cause and further appearing to the Court that plaintiff is a woman of good character and reputation now therefore it is considered adjudged and decreed by the Court that plaintiff be divorced from the bonds of matrimony contracted as aforesaid with defendant and that she recover against him the costs hereof and expended in said suit and have Execution therefor

19 October Term cause coming on for final hearing Therefore it is considered by the Court that the Judgment by default heretofore rendered in this cause be and the same is now here made final and became the demand of the plaintiff is decanted by the instrument in the Court finds that the plaintiff has sustained damages and assessed the same at the sum of One Hundred and Sixty Six Dollars and Forty Two Dollars cents Therefore it is considered by the Court that the plaintiff recover of the defendant the said sum of One Hundred and Sixty Six Dollars and Forty Two cents for his damages as well as his last and charges in the behalf expended and that execution use therefor Memo this Judgment bears 6 of On motion of John Cosgrove L. L. Bridges Esq of Sedalia Missouri Enrolled as an Atty at this bar Thomas Tucker Acast Pacific Rail Road The defendant by attorney file herein his not ion for a new trial C. C. Allison assignee of H Windsor . S. C. Allison plaintiff the execution is returned not satisfied . It is therefore considered by the Court that the motion to quart be and the same is now of the plaintiff in execution therefore it is considered by the Court that I C Allison recover of C H Allison his cast in this behalf expended and that execution issue therefore The State of Missouri on the relation of the Central National Bank of Boonville Missouri Relator against Christian Keill as Treasurer of Cooper County Respondend And now at this day comes the said relator and presented its petition for mandamus against the said respondent and the Court being fully advised in the premises it is ordered that an alternative writ of mandamus issue to the said Christian Keill as Treasurer of Cooper County returnable to this court on 19 171 October Term 1811 the 7th day of this term being the 23rd day of October 1811 at the hour of 10 oclock A M Commanding the said respondent as Treasurer as aforesaid to pay over to relator the amount of warrant No 380 for Nine Hundred and six Dollars of date February 6th 1871 drawn on said respondent as such Treasurer , by order of the County Court of Cooper County in favor of Wm E Baird and by him endorsed and assigned to relator and which was presented to said respondent as such Treasurer for payment and by him endorsed . Presented not paid for want of funds Feby 6th 171 and for which the payment of which afterwards and bout the 12th of May 1871 funds applicable to its payment were received and by said respondent set aside for said warrant and are or ought to be yet in respondents hands but the payment of which warrant although demanded has been by said responded refused and is yet refused or the said respondent show and to this Court why he has not paid the same Nancy & Calon vs Aaron Caton Now at this day the above entitled cause coming on to be heard and the said defendant having made default and it appearing to the Court that on me 12th day of October 1869 in the County of Cooper and State of Missouri the plaintiff was lawfully she continued to live married to the defendant that after the day and with him as his wife from and year aforesaid until the 8th day of 1870 ; that during all that time plaintiff April faithfully demand herself and discharged all her duties as the wife defendant and at all time treated him with kindness and affection , but said defendant wholly disregarding his duties as the husband of plaintiff did on the 8th day April 1870 absent himself of reasonable cause and has remained absent from her ever since to wit for the space of one year that plantiff has resided within this State one whole year iting of the petition in this Cause and further appearing to the Court that plaintiff is a woman of good character and reputation , Now therefore it is considered adjudged and decreed by the Court that plaintiff be divorced from the bonds of Matrimony contracted as aforesaid defendant and that she recover

against time her costs out and expended in said suit and Execution therefore have with

Citation:

"Cooper, Missouri, United States records," images, FamilySearch (<https://www.familysearch.org/ark:/61903/3:1:3Q9M-C39G-M9H1-G?view=fullText> : Sep 14, 2026), image 91 of 673; Missouri. Circuit Court (Cooper County).

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